

2:00 PM LINE 5

24-CIV-07029 SEAN LIU, ET AL VS. WEI MING TOH, ET AL

SEAN LIU
WEI MING TOH

MICHAEL MENGARELLI
KORY L. PHILLIPS

Plaintiffs' Motion for Leave to File First Amended Complaint

TENTATIVE RULING:

Plaintiffs Sean Liu and Casey Harmon's Motion for Leave to File a First Amended Complaint is ruled on as follows:

First, the notice of motion lists an incorrect address for the hearing. (See Cal. Rules of Court, rule 3.1110.) The hearing will be held in Department 2, Courtroom K, at 1050 Mission Road, South San Francisco, California.

Second, the proof of electronic service of the motion and supporting papers fails to state "[t]he electronic service address ... of the person making the electronic service," as required by Code of Civil Procedure section 1013b, subdivision (b)(1). If, by the time of the hearing, Plaintiffs file an amended proof of service that fully complies with section 1013b, the Court intends to **GRANT** leave to file the proposed First Amended Complaint. If an amended proof is filed, counsel for Plaintiffs shall appear at the hearing and notify the Court.

The parties are advised that future proposed amendments should first be pursued by stipulation when reasonably possible, and only genuinely disputed amendments should require a noticed motion. An unreasonable refusal to stipulate to a readily curable amendment may support sanctions in an appropriate case. (See *Ellis v. Roshei Corp.* (1983) 143 Cal.App.3d 642, 649-650.)

2:00 PM LINE 6

25-CIV-10124

KELCEY NUQUI VS. COUNTY OF SAN MATEO, A PUBIC ENTITY AND SUBDIVISION OF CALIFORNIA

KELCEY NUQUI

COUNTY OF SAN MATEO, A PUBIC ENTITY AND SUBDIVISION OF CALIFORNIA

JUSTIN L. CLARK

CRAIG N. BAUMGARTNER

Defendant's Demurrer to Plaintiff's Complaint

TENTATIVE RULING:

For the following reasons, Defendant County of San Mateo's Demurrer to the Third Cause of Action for Disability Discrimination in Violation of FEHA, Fifth Cause of Action for Failure to Provide Reasonable Accommodations in Violation of FEHA, Sixth Cause of Action for Failure to Engage in Good Faith in the Interactive Process in Violation of FEHA, Ninth Cause of Action for Retaliation in Violation of the California Family Rights Act ("CFRA"), and Tenth Cause of Action for Interference with Rights in Violation of the CFRA is **SUSTAINED IN PART** with leave to amend and **OVERRULED IN PART**, as follows:

THIRD CAUSE OF ACTION FOR DISABILITY DISCRIMINATION IN VIOLATION OF FEHA

Against a public entity, material facts necessary to establish statutory liability must be pleaded with particularity. (*Agustin v. Golden Empire Transit Dist.* (2025) 116 Cal.App.5th 426; *Lopez v. Southern Cal. Rapid Transit Dist.* (1985) 40 Cal.3d 780, 795.)

The elements of a prima facie claim for mental-disability discrimination under FEHA are: (1) a qualifying mental disability; (2) the ability to perform the essential functions of the job, with or without reasonable accommodation; and (3) an adverse employment action because of the disability. (*Higgins-Williams v. Sutter Medical Foundation* (2015) 237 Cal.App.4th 78, 84.)

DISABILITY

Government Code section 12926 defines a mental disability to include a "mental or psychological disorder or condition, such as ... emotional or mental illness ... that limits a major life activity." (Gov. Code, § 12926, subd. (j)(1).) Plaintiff alleges that she "experienced aggravating medical symptoms related to stress, anxiety, difficulty and/or inability to eat, concentration problems." (Complaint, ¶ 20.) As pleaded, those allegations describe symptoms but do not identify a mental or psychological disorder or condition. Plaintiff's additional allegations that "Defendants knew of Plaintiff's disabilities" and that her "disabilities and medical conditions were substantial motivating reasons" for adverse treatment are conclusory as to the existence of a qualifying disability and do not satisfy the particularity required when pleading statutory liability against a public entity. (*Id.*, ¶¶ 41-42.)

Plaintiff emphasizes FEHA's broad definition of disability, but the pleading must still allege facts identifying a qualifying disorder or condition. The Complaint, as currently pleaded, does not do so.

CAUSATION